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Case Number: 24NNCV01970 Hearing Date: September 18, 2026 Dept: T

Sarkis

Gezalyan vs Azat Gezalyan, et al.

Motion for

Summary Judgment, or in the alternative, Summary Adjudication of Complaint and Cross-Complaint

Moving Party: Plaintiff/Cross-Defendant

Sarkis Gezalyan

Responding Party: Defendant/Cross-Complainant

Azat Gezalyan

Tentative Ruling: Deny

BACKGROUND

On May 31, 2024, Plaintiff Sarkis

Gezalyan ("Plaintiff") filed a complaint against Defendants Azat Gezalyan ("Defendant"), Shapiro Ventures LLC, and Does 1 through 20, alleging the following causes of action: (1) breach of fiduciary duty; (2) intentional interference with prospective business advantage; (3) temporary restraining order (TRO) permanent injunction and equitable relief; (4) interlocutory decree ordering winding up and dissolution of the corporation; and (5) demand for repayment of shareholder loans.

On July 12, 2024, Defendant filed a

cross-complaint against Plaintiff, Susanna Muradian, and Roes 1 through 10, alleging the following causes of action: (1) breach of contract – express; (2)

breach of contract – implied; (3) breach of fiduciary duty; (4) conversion; (5) penal code 496; (6) unjust enrichment; (7) accounting; and (8) injunctive relief.

On December 18, 2024, Defendant filed a first amended cross-complaint ("FACC"), alleging the same cause of action against these cross-defendants.

On March 14, 2025, the Court sustained Cross-Defendant Susanna Muradian's demurrer to the FACC without leave to amend. The Court also sustained Plaintiff's demurrer to first and second causes of action in the FACC.

On August 19, 2025, Plaintiff filed a first amended complaint ("FAC"), which included a newly alleged sixth cause of action for breach of contract against Defendant.

In a combined motion, Plaintiff now moves for summary judgment, or in the alternative, summary adjudication of the remaining breach of fiduciary duty, intentional interference with prospective economic advantage, and breach of contract causes of action in the FAC, as well as the remaining causes of action for breach of fiduciary duty, conversion, violation of California Penal Code section 496, and unjust enrichment in the FACC.

Defendant opposes, and Plaintiff replies.

MOVING PARTY POSITION

As to the FAC, Plaintiff argues that there are no triable issues of fact related to his cause of action for breach of fiduciary duty as Defendant breached the duty he owed to Plaintiff as partners in Shapiro Ventures LLC in several ways. Plaintiff also argues that there are no triable issues of fact on his intentional interference with prospective business advantage cause of action as it is indisputable that he and Defendant had an economic relationship with each other and that Defendant engaged in conduct that interfered with that relationship. There are also no triable issues of fact as to the breach of contract

cause of action based on Defendant's breach of the promises made under the operating agreement for Shapiro Ventures LLC.

As

to the FACC, Plaintiff argues that Defendant cannot establish that Plaintiff breached any fiduciary duty owed to him or that Defendant was damaged by any actions taken by Plaintiff. Defendant

also cannot establish that Plaintiff wrongfully took the real property from Defendant in support of his conversion claim.

Defendant further cannot establish that Plaintiff violated Penal Code section 496 by taking the real property from Defendant. Finally, Defendant cannot establish the elements of his unjust enrichment cause of action as there is no claim made by Defendant that Plaintiff received a benefit at his expense.

OPPOSITION

Defendant

contends that a material dispute of fact exists as to the cause of the foreclosure and that Plaintiff's exclusive authority over the refinancing and sale process preclude his attempt to shift responsibility to Defendant. Defendant also contends that there is substantial documentary evidence to establish the existence of triable issues concerning the legitimacy of the refinancing transactions and that his evidence directly contradicts the contention that Defendant obstructed the sale of the real property. Defendant further contends that Plaintiff excluded him from the auction process while simultaneously claiming that Defendant interfered with that process. In addition, Defendant contends that numerous disputed issues still required resolution by the trier of fact and warrant denial of Plaintiff's request for summary judgment.

REPLY

Plaintiff responds to deficiencies in Defendant's opposition and reiterates his arguments.

ANALYSIS

I.

Legal

Standard

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].) Further, in line with Aguilar v. Atlantic Richfield Co., “[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (Fisherman’s Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at p. 840 [cleaned up]; see, also, Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

II. Evidentiary

Objections

The Court declines to rule on Plaintiff's evidentiary objections, as they have no effect on the ruling herein.

III. Request

for Judicial Notice

Pursuant

to the request of each party, the Court takes judicial notice of the exhibited documents. (Evid. Code § 452, subd. (d).)

IV. Discussion

Initially,

to the extent that Plaintiff submits evidence in support of its reply brief, the Court notes that Code of Civil Procedure section 437c(h)(4) provides that "[t]he reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers."

Here,

Plaintiff seeks summary judgment, or summary adjudication, of the FAC's remaining breach of fiduciary duty, intentional interference with prospective business advantage, or breach of contract causes of action. Plaintiff also seeks summary judgment, or summary adjudication, of the FACC's remaining breach of fiduciary duty, conversion, violation of California Penal Code section 496, and unjust enrichment causes of action.

In

strictly construing Plaintiff's evidence and drawing all reasonable inferences therefrom, the Court finds that Plaintiff has failed to carry his initial burden of production in making a prima facie showing that no triable issue exists as to any of his causes of action. "And where the plaintiff has also moved for summary judgment—or, as in this case, summary adjudication—that party has the burden of showing there is no defense to a cause of action. [Citation.] That burden can be met if the plaintiff 'has proved each element of the cause of

action entitling the party to judgment on that cause of action.'

[Citation].” (S.B.C.C., Inc. v. St.

Paul Fire & Marine Ins. Co. (2010) 186 Cal.App.4th 383, 388.) Nor has Plaintiff otherwise shown that Defendant has no defense to his breach of fiduciary duty, intentional interference with prospective business advantage, or breach of contract causes of action.

Likewise,

the Court finds Plaintiff fails to make a prima facie showing that Defendant cannot produce evidence establishing any of the elements of his cross-claims against Plaintiff. If a defendant seeks summary judgment by showing the absence of evidence on a critical element of the plaintiff's claim, “[t]he defendant must show that the plaintiff does not possess needed evidence, because otherwise the plaintiff might be able to establish the elements of the cause of action; the defendant must also show that the plaintiff cannot reasonably obtain needed evidence, because the plaintiff must be allowed a reasonable opportunity to oppose the motion.” (Aguilar, supra, 25 Cal.4th at p. 854, italics in original.) To make this showing, a defendant must “present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence” to establish any elements of the underlying causes of action. (Ibid.) Moreover, under this approach, “a defendant's initial evidentiary showing may ‘consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.’ [Citation.]” (Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1102.) Nor has Plaintiff affirmatively shown that any of the elements of these causes of action cannot be established.

Furthermore,

even if the Court had determined that Plaintiff made a prima facie showing as to either the FAC or FACC, Defendant's admissible evidence was sufficient to carry any shifted burden of proof in establishing triable issues on all of the causes of action at-issue in these pleadings.

Therefore,

the motion is denied in its entirety.

RULING

Plaintiff/Cross-Defendant

Sarkis Gezalyan's

Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED.